

25CV04752 Dario Ahedo et al v Carpinteria Unified School District

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-09-09

Motion: Motion to Dismiss

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25cv04752-1>

Source SHA-256: 327da88543441bffc76587885981eb3e569982c6c067cec3f8f51f83197e8c2a

Tentative Ruling: Dario Ahedo et al v Carpinteria Unified School District

Case Number

25CV04752

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 09/09/2026 - 10:00

Nature of Proceedings

Motion to Dismiss

Tentative Ruling

Plaintiffs are represented by Andrea Marcus

Defendant is represented by Cyrus Khosh-Chashm

RULING

The present motion by Petitioners to dismiss certain other Petitioners and certain Respondents from this case was filed on June 23, 2026. On June 16, 2026, prior to filing the present motion, Petitioners filed a second amended petition for writ of mandate (SAP) which does not name the Petitioners and Respondents who are the subject of the motion to dismiss. On July 17, 2026, Respondent Carpinteria Unified School District (CUSD) filed a demurrer to the SAP which is calendared for hearing on October 7, 2026. CUSD has also filed a response to the motion to dismiss, in which CUSD raises procedural issues

arising from the filing of the motion to dismiss and SAP. Under the circumstances present here and in the interests of judicial efficiency, the Court will continue the hearing on the motion to dismiss to October 7, to be heard with the demurrer of CUSD. The Court notes that this petition seeks a writ of mandate that was previously scheduled for October 7. The second amended petition also includes two causes of action for writ of mandate – one for a traditional writ under Code of Civil Procedure section 1085, and the other for a writ of mandate under section 1094.5. The Respondent points out in their response to the motion to dismiss that the hearing on the writ cannot proceed until the pleadings are settled and the administrative record, if necessary, is produced. Respondent also requests that the hearing on the writ be continued. The Court will continue the writ of mandate to a date to be determined after the Court resolves the demurrer. The Court cannot reasonably determine suitable dates until that demurrer is resolved, considering the possibility the demurrer may be sustained with leave to amend.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US